

25AVCV00035 25AVCV00035

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Case Number: 25AVCV00035 Hearing Date: September 24, 2026 Dept: A15

SHARMA v. GUY F. ATKINSON CONSTRUCTION, LLC et al.

Cross-Complainant

Alfredo Colon's Motion to Compel Discovery Responses and for Monetary Sanctions

Cross-complainant Alfredo Colon's motion to compel

initial discovery responses from cross-defendant HG Trucklines, Inc. (HG), and

for monetary sanctions is set for hearing on September 24, 2026, at 8:30 a.m.

in Department A15. The Court has reviewed the motion, limited opposition,

reply, supporting declarations and exhibits, Southlake Specialty Insurance

Co.'s September 10, 2026 intervention filing insofar as it bears on the

requested continuance, and the file in this matter. The Court tentatively rules

as follows.

DISPOSITION

1. The request for a

further continuance of the discovery motion pending determination of Southlake

Specialty Insurance Co.'s motion for leave to intervene is DENIED.

2. The requests to

compel initial responses to Form Interrogatories, Set One, Special

Interrogatories, Set One, and Requests for Production of Documents, Set One,

served on HG on December 23, 2025, are GRANTED. Within 30 days after service of

notice of the order, HG shall serve separate, verified, code-compliant

responses, without objections, to the form interrogatories actually propounded,

the 64 special interrogatories, and the 88 document demands. Compliance must

occur through a legally authorized means. This order does not restore HG's

suspended corporate powers or authorize counsel to litigate in HG's name while those powers remain suspended.

3. The request for an unconditional order requiring production of all responsive documents within 10 days is DENIED WITHOUT PREJUDICE. The relief granted on the document demands is an order for initial written responses, including the required statement of compliance or verified representation of inability to comply for each demand.

4. The request for monetary sanctions against HG and its counsel is DENIED. The Court also declines to impose the additional sanction under Code of Civil Procedure section 2023.050 for the reasons stated below.

5. The request to declare that a future intervening insurer automatically inherits HG's discovery defaults and obligations is DENIED. This ruling imposes no response obligation on Southlake and does not decide its motion for leave to intervene, presently set for December 29, 2026.

6. Colon shall give notice of the order.

REASONS

A. Procedural history and factual background

The discovery concerns HG's asserted relationship with Varun Sharma and information concerning a March 14, 2024 vehicle collision, including operation, maintenance, insurance, and liability contentions. (Mot., Ex. B, pp. 2-7; Ex. C, pp. 3-9.) Halpern's reply declaration states that all three sets were served on HG on December 23, 2025, that extensions were granted through March 2026, and that no responses had been served when the motion was filed. (Halpern Reply Decl., ¶¶ 2-5.) Counsel's limited opposition does not dispute service or identify any response subsequently served. It seeks additional time because HG is suspended and its insurer wishes to intervene. (Opp'n, pp. 2-5.)

On August 25, the Court continued the motion to September 24 and directed payment of two additional motion fees. Those fees

have been paid. (Minute Order, Aug. 25, 2026, p. 1, ¶¶ 1-2; Halpern Reply Decl., ¶ 10.) The Court also required any further request for time based on insurer intervention to show that Southlake filed and served an intervention application with its proposed pleading by September 10. The order expressly stated that timely filing would not itself establish good cause for another continuance. (Minute Order, Aug. 25, 2026, pp. 1-2, ¶¶ 4-5.)

Southlake filed and served its motion with a proposed answer on September 10. It noticed the motion for December 29, 2026. (Southlake Mot. for Leave to Intervene, pp. 1-2, Latman Decl., ¶ 7 & Ex. A, and proof of service.) The filing satisfies the prior filing condition, but leave to intervene has not been granted.

B. Governing standards

A party propounding interrogatories or document demands may move to compel initial responses when the responding party fails to serve timely responses. Failure to respond also waives objections, subject to the statutory procedure for relief from waiver. (Code Civ. Proc., §§ 2030.290, subds. (a)-(b), 2031.300, subds. (a)-(b).) Colon bears the burden of establishing service, expiration of the response period, and the failure to respond. His reply declaration establishes those facts, and the limited opposition does not contest them.

A corporation suspended under Revenue and Taxation Code section 23301 cannot prosecute or defend litigation in its own name. An insurer seeking to defend its interests must intervene rather than litigate in the suspended corporation's name. (Kaufman & Broad Communities, Inc. v. Performance Plastering, Inc. (2006) 136 Cal.App.4th 212, 217-218.) The disability extends to participation in discovery. (Palm Valley Homeowners Ass'n, Inc. v. Design MTC (2000) 85 Cal.App.4th 553, 563-564.)

C. Initial responses and the requested continuance

Colon has established entitlement to initial responses to each of the three discovery sets. No response, request for relief from waiver, or order staying discovery is identified in the papers. The Court therefore grants the requests for verified responses without objections. The ruling rests on nonresponse, not on Colon's separate contention that

unspecified objections were asserted while HG lacked capacity.

The suspension presents a genuine restriction on how HG may comply, but it does not require the Court to defer adjudication until Southlake becomes a party. Code of Civil Procedure section 387 provides the procedure for intervention. Its subdivision (f) governs responses to a pleading in intervention and supplies no automatic stay of an existing party's discovery obligations. Southlake's pending application does not restore HG's corporate powers or make Southlake the responding party to discovery addressed to HG. A further continuance to December 29 would therefore postpone this motion without a showing that it would enable HG to supply lawful responses.

The Court allows 30 days for lawful compliance rather than the requested 10 days in light of the capacity issue. The order runs against HG. It does not permit counsel to disregard the suspension, direct Southlake to verify responses for HG, or predetermine any later request concerning noncompliance.

As to the document demands, Code of Civil Procedure section 2031.300, subdivision (b), authorizes an order compelling a response. The response must address each demand through a statement of compliance or a representation of inability to comply that satisfies the statutory requirements. (Code Civ. Proc., §§ 2031.210, subd. (a), 2031.230.) The present record does not establish that every requested document exists or is within HG's possession, custody, or control. The Court therefore declines the separate request for unconditional production of all responsive documents before HG supplies the required responses.

D. Monetary sanctions

The applicable statutes require monetary sanctions for an unsuccessful motion or opposition unless substantial justification or other circumstances make sanctions unjust. (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).) Colon initially sought \$1,500 and now requests \$2,370 in attorney fees and filing costs. (Mot., pp. 7-8; Halpern Decl. in Supp. Mot., ¶ 7; Halpern Reply Decl., ¶ 11.)

The Court finds that imposing monetary sanctions against HG or counsel would be unjust on this record. HG was suspended before the discovery was served. The declarations report that its business has closed

and that it lacks the resources needed for revivor. Latman states that, after taking over handling of the matter in May 2026, he discovered the suspension, repeatedly attempted to contact HG's principals, and learned in August that revivor was not financially feasible. (Halpern Reply Decl., ¶ 9 & Exs. E-F; Latman Decl. in Opp'n, ¶¶ 2-5.) Counsel disclosed the disability and pursued insurer intervention, and Southlake filed within the deadline set by the Court. These circumstances present an actual legal impediment to verified litigation responses and a documented effort to use the lawful procedure for continuing the defense. They warrant relief from monetary sanctions, although they do not warrant leaving this discovery motion unresolved for another three months.

The Court has separately considered Code of Civil Procedure section 2023.050, which requires an additional \$1,000 sanction upon the specified findings concerning document discovery, subject to its notice requirements and express exceptions. Even assuming a predicate finding under subdivision (a), the Court makes the foregoing written findings as to HG and counsel under subdivision (c) and concludes that the additional sanction would also be unjust in these circumstances.

E. Southlake's independent rights

Colon also asks the Court to declare that any future insurer intervener must inherit HG's discovery defaults. That request is too broad. An insurer permitted to intervene to protect its own interests is not automatically bound by the aligned insured's procedural defaults. (*Western Heritage Ins. Co. v. Superior Court* (2011) 199 Cal.App.4th 1196, 1206-1207.) The Court therefore confines the present response order and waiver determination to HG. Any discovery properly directed to Southlake, and any question concerning its participation after intervention, must be addressed in the appropriate procedural setting.

To submit without oral argument, all parties must follow the Department's "Submitting on a Tentative Ruling" instructions. Only one joint email may be sent. Do not telephone the courtroom. If the parties do not unanimously agree to submit, any party may appear at the scheduled hearing without advance notice.